

The Aircraft (Public Health) Rules, 1954

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Union of India - Act

The Aircraft (Public Health) Rules, 1954

UNION OF INDIA

India

The Aircraft (Public Health) Rules, 1954

Rule THE-AIRCRAFT-PUBLIC-HEALTH-RULES-1954 of 1954

Published on 17 October 1955

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The Aircraft (Public Health) Rules, 1954

Published vide S.R.O. 2218, dated 17.10.1955.

243.

In exercise of the powers conferred by section 8-A of the Aircraft Act, 1934 (XXII of 1934), and in supersession of the Indian Aircraft (Public Health) Rules, 1946 published with the notification of the Government of India in the Ministry of Health No. F. 14-2/46-P.H. (II), dated the 30th September, 1946, the Central Government hereby makes the following rules, the same having been previously published as required by section 14 of the said Act, namely:--

Part I ? Introductory

1.

These rules may be called the [Aircraft (Public Health) Rules, 1954.]

2.

In these rules, unless there is anything repugnant in the subject or context, --

(1)

"airport" means an airport designated by State in whose territory it is situated as an airport of entry or departure for international traffic;

Explanation.-In India an "Airport" corresponds to an aerodrome declared under rule 53 of the Indian Aircraft Rules, 1920, to be a customs aerodrome.

(2)

"arrival" means arrival at an airport;

(3)

"baggage" means the personal effects of a traveller or of a member of the crew;

(4)

"Commander" means the pilot-in-command or other person in-charge of an aircraft;

(5)

"crew" means the personnel of an aircraft who are employed for duties on board;

(6)

"day" means an interval of twenty-four hours;

(7)

"direct transit area" means a special area established in connection with an airport, approved by the Health Officer concerned and under his direct supervision, for accommodating direct transit traffic and, in particular, for accommodating, in segregation, passengers and crews breaking their voyage without leaving the airport;

(8)

"Health Officer" means in respect of an airport in India any person appointed by the Central Government to be the Health Officer of the airport, and includes an Additional, Deputy or Assistant Health Officer appointed by the Central Government to perform the functions of a Health Officer;

(8-A) "Infected aircraft" means an aircraft which under rule 9(1), 16, 20(1), 24 or 30(1) is regarded as an aircraft infected with an infectious disease;

(9)

"Infected area" in relation to a quarantinable or other infectious disease means any area outside India, declared by the Central Government, by notification in the Official Gazette, to be infected with such a disease;

(10)

"infected person" means a person who is suffering from a quarantinable or other infectious disease, or who is believed to be infected with such a disease;

(11)

"infectious disease" means in addition to quarantinable diseases, a disease, declared by the Central Government by notification in the Official Gazette to be an infectious disease;

(12)

"International voyage" means--

(a)

in the case of an aircraft, a voyage between airports in the territories of more than one State or a voyage between airports in the territory or territories of the same State if the aircraft has relations with the territory of any other State on its voyage but only as regards those relations;

(b)

in the case of a person, a voyage involving entry into the territory of State other than the territory of the State in which that person commences his voyage;

(13)

"Isolation" when applied to a person or group of persons means the separation of that person or group of persons from other persons, except the health staff on duty, in such a manner as to prevent the spread of infection;

[(13-A) "mainland" means the territory of India excluding the Andaman and Nicobar Islands;]

(14)

"medical examination" includes visit to and inspection of an aircraft and the preliminary examination of persons on board;

(15)

"period of incubation" means (a) in respect of a quarantinable disease mentioned below, the period specified against it--

Yellow fever

6 days

Plague

6 days

Cholera

5 days

Smallpox

14 days

Typhus

14 days

Relapsing fever

8 days

and (b) in respect of other infectious diseases such period as may be declared by the Central Government by notification in the Official Gazette to be the period of incubation of that disease;

(16)

"quarantinable diseases" means yellow fever, plague, cholera, small pox, typhus and relapsing fever;

(17)

"relapsing fever" means louse-borne relapsing fever;

(18)

"suspect" means a person who is considered by the Health Officer as having been exposed to infection by a quarantinable to an infectious disease and is considered capable of spreading that disease;

(18-A) "suspected aircraft" means an aircraft which under rule 9(2), 20(2) or 30(2) is regarded as an aircraft suspected of infection from an infectious disease;

(19)

"typhus" means louse-borne typhus;

(20)

"valid certificate", when applied to vaccination, means a certificate which--

(i)

[conforms to the requirements and the model laid down in Schedules III, IV and V to these rules;]

[Substituted by S.O. 984, dated 30.3.1963.]

(ii)

is issued only to individuals and cannot, in any circumstances, be used collectively;

(iii)

is issued in the case of children separately and is not incorporated in the mother's certificate;

(iv)

is completed in English or in French;

(v)

is signed in the case of an international certificate, by the parent or guardian of a child who is unable to sign or which bears in the case of an illiterate person, the mark of such illiterate person, duly attested by another person to whom such illiterate person is personally known;

(vi)

is signed, in the case of an international certificate issued in India, in his own hand by a qualified medical practitioner whose name is enrolled in the Indian Medical Register maintained under section 21 of the Indian Medical Council Act, 1956 (102 of 1956)">

(vi)

is signed, in the case of an international certificate issued in India, in his own hand by a qualified medical practitioner whose name is enrolled in the Indian Medical Register maintained under section 21 of the Indian Medical Council Act, 1956 (102 of 1956). In the case of certificates of vaccination against cholera and smallpox issued in India, the approved stamp to be affixed thereon shall be such as has been approved by the Central Government and stamp shall be affixed

on the certificates by only those persons who are authorised, either by designation or by name, for this purpose by the Central Government. In the case of certificates of vaccination against yellow fever issued in India, the vaccinating centres shall be approved by the Central Government.

Part II ? AIRCRAFT ARRIVING

General Provisions,

3.

(1)

The Commander of an aircraft which is on its way to India from any place outside India, shall send to officer-in-charge of the airport, where he proposes to land in India, a health report stating--

(a)

whether any person on board the aircraft is suffering from any illness, and if so, what its signs and symptoms are, giving, if possible, the name of the illness, and

(b)

whether at any time during the voyage there has occurred on board any case, or suspected case of a quarantinable or any other infectious disease, and if so what that case was.

(2)

The report referred to in sub-rule (1) shall be sent--

(a)

if the aircraft is not equipped with wireless, by means of cablegram from the last place of landing before entering India, and

(b)

if the aircraft is equipped with wireless, by means of a wireless message, when it is not less than two hours out from the airport in India, where it is proposed to land the aircraft.

(3)

The Health Officer of an airport may, if authorised by the general or special orders of the Central Government, grant pratique by radio to an aircraft when on the basis of information contained in the health report received from it prior to its arrival, he is of the opinion that its arrival will not result in the introduction or spread of a quarantinable or any other infectious disease.

4.

The Central Government may, by notification in the Official Gazette, direct that aircraft shall, on entering India from any place outside India, land only at such airport or airports as may be specified in the notification.

5.

(1)

If for any reasons beyond the control of the Commander an aircraft lands elsewhere than at an airport, or at an airport specified under rule 4, it shall proceed as soon as possible, without discharging any passenger, crew or cargo to an airport specified under rule 4 or, where no such airport is specified, to a conveniently situated airport.

(2)

If it is impracticable for the aircraft to comply with the provisions of sub-rule (1), the Commander shall forthwith notify the Health Officer of the nearest airport and also the nearest Magistrate, Officer in-charge of a Police Station or Government Medical Officer, who shall take such measures to prevent the spread of infection, in accordance with the provisions of these rules as he may consider necessary or expedient. The Commander shall prevent any cargo being removed from, or any passenger or member of the crew leaving the vicinity of, the aircraft except to such extent as may be necessary to conform to, or to facilitate the measures taken under this sub-rule. The Commander may take such emergency measures as may be necessary for the health and safety of passengers and crew. On arrival at the airport referred to in sub-rule (1), the Commander shall report the relevant facts to the Health Officer of the airport.

6.

(1)

The Commander of an aircraft coming from any place outside India or his authorised agent shall--

(a)

arrange for all persons on an international voyage on board to complete a Personal Declaration of Origin and Health in the form shown in Schedule I to these rules; and

(b)

complete and deliver to the Health Officer of the airport [the health part of the Aircraft General Declaration which shall conform to the model specified in Schedule II];

(2)

The Health Officer shall have the right to demand if he considers it necessary, and on such a demand having been made it shall be incumbent on the Commander or his authorised agent to produce the aircraft journey log book. The Commander or his authorised agent shall also supply any further information required by the Health Officer as to health conditions on board during the voyage.

7.

When an infected or suspected aircraft coming from a place outside India, or a healthy aircraft coming from a yellow fever infected area arrives at an airport, the Health Officer may, until such time as the appropriate measures prescribed in the case of such aircraft have been taken, require that the passengers and crew of the aircraft shall not go beyond such limits within the airport as may be specified by him.

8.

[(1)] The Health Officer of an airport may, whenever he considers it desirable, subject to medical examination, inspect any aircraft and its passengers and crew on its arrival at the airport. The further sanitary measures which may be applied to the aircraft shall be determined by the conditions which existed on board during the voyage or which exist at the time of the medical examination, without prejudice to the measures which are permitted by these rules to be applied to the aircraft if it arrives from an infected area.

(2)

[Where special problems constituting a grave danger to public health exist, a person on an international voyage may, on arrival, be required to give a destination address in writing.]

[Inserted by S.O. 2741, dated 3.9.1966.]

[8-A.

On arrival in an area where malaria or other mosquito-borne disease could develop from imported vectors, the aircraft may be disinfected if the Health Officer is not satisfied with disinsection carried out at a previous airport in accordance with rule 39-A or he finds live mosquitoes on board.]

Special provisions relating to quarantinable diseases

A. YELLOW FEVER

9.

(1)

An aircraft shall be regarded as infected with yellow fever--

(i)

if it has a case of yellow fever on board, or

(ii)

if there has been on board a case of yellow fever and, subsequent to the occurrence of that case, all the measures specified in sub-rule (1) of rule 13 have not been taken to the satisfaction of the Health Officer before arriving in India.

(2)

An aircraft shall be regarded as suspected of yellow fever infection if it has started from or alighted in an airport in a yellow fever infected area and has not been disinfected immediately before the departure from that airport under control of the Health authority of the airport or in another airport subsequent to such starting or alighting and has not obtained a certificate of disinsection [from any officer or body] stating that aircraft after leaving or alighting in the yellow fever infected area and before arriving in India has been disinfected in accordance with the procedure prescribed in Schedule VI to these rules, [or recommended by the World Health Organisation]

[Inserted by S.O. 1475, dated 31.5.1960.]

, or if live mosquitoes are found on board.

(3)

Any other aircraft shall be regarded as healthy.

10.

(1)

Where an aircraft, having started from, or during the course of the voyage alighted in, a yellow fever infected area, is on

its way to India, the report referred to in sub-rule (1) of rule 3 shall also state--

(a)

the date of departure of the aircraft from the yellow fever infected area, and

(b)

whether the aircraft has been disinfected immediately before or since leaving the yellow fever infected area and if so, the place at which, and the authority by which it was disinfected.

(2)

Where an aircraft has on board any persons coming from a yellow fever infected area, the report referred to in sub-rule (1) of rule 3 shall also state the number of such persons, the dates of their respective departure from such area, and the dates on which each of such persons has been vaccinated against yellow fever.

11.

No person shall bring into India an aircraft which has started from, or alighted in, an airport situated in a yellow fever infected area unless it has been disinfected immediately before departure from that airport under the control of the Health authority of that airport in accordance with the procedure prescribed in Schedule VI to these rules [or with any procedure recommended by the World Health Organisation.]

12.

Any aircraft which, having started from or alighted in an airport situated in a yellow fever infected area, attempts to enter India, without having been disinfected immediately before departure from that airport under the control of the Health Authority of the airport in accordance with the procedure prescribed in Schedule VI to these rules [, or with any procedure recommended by the World Health Organisation,] may be refused entry.

13.

(1)

On the arrival of an aircraft infected with yellow fever or suspected of yellow fever infection--

(i)

the aircraft and cargo shall be disinfected,

(ii)

all infected persons shall be disembarked and isolated for such period as the Health Officer may consider necessary,

(iii)

all persons on board shall be medically examined either before disembarkation or under such arrangements as may be made by the Health Officer to reduce to a minimum the risk of spread of infection, and

(iv)

any passenger or member of the crew who disembarks and is not in possession of a valid certificate of vaccination against yellow fever shall be isolated until his certificate becomes valid or until a period of not more than nine days reckoned from the date of last possible exposure to infection has elapsed, whichever occurs first:

Provided that persons on an international voyage proceeding to an airport in a yellow fever receptive area at which the means for securing segregation provided for in Article 34 of the International Sanitary Regulations do not yet exist shall be disembarked by the Health Officer and isolated for the period specified in clause (iv).

Explanation.-(1) Yellow fever receptive area means an area in which yellow fever does not exist but where conditions would permit its development if introduced.

(2)

The aircraft shall cease to be regarded as infected or suspected when the measures required by the Health Officer in accordance with sub-rule (1) of this rule have been effectively carried out, and it shall thereupon be given free pratique.

14.

(1)

On the arrival of a healthy aircraft coming from a yellow fever infected area--

(i)

the aircraft and cargo may be disinfected:

Provided that, when the aircraft on its voyage over the yellow fever infected areas has landed only at a sanitary airport which is not itself a yellow fever infected area, the aircraft may not be disinfected unless a person, other than a person in possession of valid certificate of vaccination against yellow fever, from the surrounding yellow fever infected areas has boarded the aircraft and the aircraft reached India within a period during which such a person is likely to spread

yellow fever infection.

(ii)

all persons on board shall be medically examined either before disembarkation or under such arrangements as may be made by the Health Officer to reduce to a minimum the risk of spread of infection; and

(iii)

any passenger or member of the crew who has come in transit through any airport situated in a yellow fever infected area and who is unable to produce a valid certificate of vaccination against yellow fever shall be isolated until his certificate becomes valid, or until a period of not more than nine days reckoned from the date of the last possible exposure to infection has elapsed, whichever occurs first:

Provided that, if the airport situated in the yellow fever infected area is a sanitary airport equipped with a direct transit area and if the Health Officer is satisfied that passenger or member of the crew during the period of his entire stay in the airport remained within such passenger or member of the crew from isolation.

(2)

On the arrival of a healthy aircraft which, although not coming from a yellow fever infected area, has on board a person who has come from such an area and is unable to produce a valid certificate of vaccination against yellow fever the aircraft and cargo may be disinfected.

(3)

Any person who has come from a yellow fever infected area and is unable to produce a valid certificate of vaccination against yellow fever shall be isolated until his certificate becomes valid, or until a period of not more than nine days reckoned from the date of last possible exposure to infection has elapsed, whichever occurs first. A person who boards an aircraft in a sanitary airport, which itself is not a yellow fever infected area, shall be treated as a person who has come from a yellow fever infected area unless he is able to prove to the satisfaction of the Health Officer that he has not come from such an area.

Explanation.-(1) Sanitary airport referred to in the proviso to clauses (i) and (iii) of sub-rule (1) and in sub-rule (3) means an airport which is equipped in accordance with the provisions of paragraph 2 of Article 19 and paragraph 3 of Article 20 of International Sanitary Regulations and which may be approved from time to time by the Central Government for this purpose.

(2)

A person shall be regraded as coming from a yellow fever infected area unless the Health Officer is satisfied, by reference to the Personal Declaration of Origin and health, that he has not been in such an area within nine days of arrival in India.

15.

All isolation prescribed by sub-rule (1) of rule 13 and by sub-rules (1) and (3) of rule 14 shall be carried out in such manner as to preclude the access of mosquitoes to the persons under isolation.

B. PLAGUE

16.

(1)

An aircraft shall be regarded as infected with plague--

(i)

if it has a case of human plague on board, or

(ii)

if there has been a case of human plague on board and subsequent to the occurrence of that case all the measures prescribed in rule 17 have not been taken, or

(iii)

if a plague infected rodent is found on board.

(2)

Even when coming from a plague infected area or having on board a person coming from such an area, an aircraft shall be regarded as healthy if on medical examination, the Health Officer is satisfied that conditions specified in sub-rule (1) of this rule do not exist.

17.

(1)

On the arrival of an aircraft, infected with plague--

- (i)
the aircraft and all persons on board shall be medically examined by the Health Officer,
- (ii)
all infected persons on board shall be disembarked and isolated for such period as the Health Officer may consider necessary;
- (iii)
suspects on board may be disinfected and, if necessary, placed under surveillance for a period of not more than six days reckoned from the date of arrival;
- (iv)
the Health Officer may disinsect and, if necessary, disinfect--
- (a)
any baggage of any infected person or suspect; and
- (b)
any other article such as used bedding or linen, and any part of the aircraft, which is considered to be contaminated;
- (v)
if a rodent which has died of plague is found on board the aircraft, the aircraft shall be deratted, if necessary in quarantine;
- (vi)
any unloading shall be carried out under the control of the Health Officer, who shall take all measures which in his opinion are necessary to prevent the infection of the staff engaged on this work and may, for the purpose, subject the staff to surveillance for a period not exceeding six days from the time they have ceased to work at the unloading of the aircraft.

(2)
An aircraft shall cease to be regarded as infected when the measures required by the Health Officer in accordance with sub-rule (1) of this rule have been effectively carried out. The aircraft shall thereupon be given free pratique.

18.
A healthy aircraft shall be given free pratique but, if it has come from a plague infected area, the Health Officer may place under surveillance any suspect, who disembarks, for a period of not more than six days reckoned from the date on which the aircraft left the plague infected area.

19.
In exceptional circumstances of an epidemiological nature, when the Health Officer suspects the presence of rodents on board, he may derat the aircraft.

C. CHOLERA

- 20.
- (1)
An aircraft shall be regarded as infected with cholera if it has a case of cholera on board.
 - (2)
An aircraft shall be regarded as suspected of cholera infection if a case of cholera has occurred on board during the voyage but the case has previously been disembarked.
 - (3)
Even when coming from a cholera infected area or having on board a person coming from a cholera infected area, an aircraft shall be regarded as healthy, if on medical examination, the Health Officer is satisfied that no case of cholera has occurred on board during the voyage.

21.
(1)
On the arrival of an aircraft infected with cholera-

- (i)
the aircraft and all persons on board shall be medically examined by the Health Officer;
- (ii)
all infected persons shall be disembarked and isolated for such period as the Health Officer may consider necessary;

(iii)

other persons, who disembark, may be placed under isolation for a period of not more than five days reckoned from the date of disembarkation provided that any person who produces a valid certificate of vaccination against cholera may be placed only under surveillance for a like period;

(iv)

the Health Officer may disinfect--

(a)

any baggage of any infected person or suspect, and

(b)

any other article such as used bedding, or linen and any part of the aircraft, which is considered to be contaminated;

(v)

if, in the opinion of the Health Officer, any water carried on board is contaminated, he shall cause it to be emptied out after it has been disinfected and to be replaced, after disinfection of the containers, by a supply of wholesome drinking water;

(vi)

the Health Officer may require human dejecta, waste water, waste matter and any matter which is considered to be contaminated be disinfected before they are discharged from the aircraft or unloaded;

(vii)

(a)

the Health Officer may prohibit the unloading of, or may remove, any fish, shell fish, fruit or vegetables to be consumed uncooked or beverages, unless such food or beverages are in sealed containers and he has no reason to believe that they are contaminated:

Provided that if any such food or beverage forms part of the cargo in a freight compartment of the aircraft only the Health Officer for the airport at which such food or beverage is to be unloaded may exercise the power to remove it:

Provided further that any such food or beverage shall be removed by the Health Officer if the Commander of the aircraft so desires;

(b)

if any such food or beverage is removed, arrangements shall be made by the Health Officer for its safe disposal;

(viii)

any unloading shall be carried out under the control of the Health Officer, who shall take all measures which, in his opinion, are necessary to prevent the infection of the staff engaged on this work and may, for that purpose, subject the staff to surveillance for a period not exceeding five days from the time they ceased to work at the unloading of the aircraft.

(2)

An aircraft shall cease to be regarded as infected when the measures required by the Health Officer in accordance with sub-rule (i) of this rule have been effectively carried out. The aircraft shall thereupon be given free pratique.

22.

(A) On the arrival of an aircraft suspected of cholera infection--

(1)

The aircraft and all persons on board shall be medically examined by the Health Officer; and

(2)

(i)

any person who disembarks and who within five days of arrival has been in a cholera infected area may,--

(a)

if he is in possession of a valid certificate of vaccination against cholera, be placed under surveillance for a period not exceeding five days reckoned from the time of the last exposure to infection;

(b)

if he is not in possession of such a certificate, be placed in isolation for a like period;

(ii)

any other passenger or member of the crew who disembarks may be placed under surveillance for a period not exceeding five days reckoned from the date of arrival;

(3)

all or any of the measures specified in clauses (vi) to (vii) of sub-rule (1) of rule 21, and not already taken, may be taken at the discretion of the Health Officer.

(B)

An aircraft shall cease to be regarded as suspected when the measures required by the Health Officer in accordance with sub-rule (A) of this rule have been effectively carried out. The aircraft shall thereupon be given free pratique.

23.

On arrival, a healthy aircraft shall be given free pratique but, if it has come from a cholera infected area, the measures specified in clause (vii) of sub-rule (1) of rule 21 and in sub-clause (i) of clause (2) of sub-rule (A) of rule 22 may be taken at the discretion of the Health Officer.

D. SMALLPOX

24.

(1)

An aircraft shall be regarded as infected with smallpox--

(i)

if it has a case of smallpox on board, or

(ii)

if a case of smallpox has occurred on board during the voyage.

(2)

Any other aircraft shall be regarded as healthy even though there may be suspects on board, but any suspect on disembarking may be subjected to the measures provided for in rule 25.

25.

(1)

On the arrival of an aircraft infected with smallpox--

(i)

the aircraft and all persons on board shall be medically examined by the Health Officer;

(ii)

all infected persons shall be disembarked and isolated for such period as the Health Officer may consider necessary;

(iii)

other persons who disembark and who in the opinion of the Health Officer are not sufficiently protected by vaccination or by a previous attack of smallpox--

(a)

if they are willing to be vaccinated, or in the case of minors if their guardians or those in charge of them consent to their vaccination, may be subjected to vaccination free of charge, and also to isolation or surveillance for a period not exceeding fourteen days reckoned from the time of the last exposure to infection; and

(b)

if they are not willing to be vaccinated, or in the case of minors if their guardians or those in charge of them do not consent to their vaccination, shall be subjected to isolation or surveillance for the aforesaid period;

(iv)

the Health Officer shall disinfect--

(a)

any baggage of any infected person; and

(b)

any other baggage or article such as used bedding or linen, and any part of the aircraft, which is considered to be contaminated.

(2)

An aircraft shall continue to be regarded as infected until every infected person has been removed and until the measures required by the Health Officer in accordance with sub-rule (1) of this rule have been effectively carried out. The aircraft shall thereupon be given free pratique.

26.

On arrival, a healthy aircraft, even when it has come from a smallpox infected area, shall be given free pratique but the

measures specified in clause (i) of sub-rule (1) of the rule 25 shall be taken and the measures specified in clause (iii) of that sub-rule may be taken by the Health Officer.

27.

(1)

The Health Officer may require any person on an international voyage who does not show sufficient evidence or protection by a previous attack of smallpox to possess, on arrival, a certificate of vaccination against smallpox. Any such person who cannot produce such a certificate may be vaccinated; if he refuses to be vaccinated, he may be placed under surveillance for not more than fourteen days, reckoned from the date of his departure from the last territory visited before arrival.

(2)

A person on an international voyage who during a period of fourteen days before his arrival, has visited a smallpox infected area and who in the opinion of the Health Officer, is not sufficiently protected by vaccination or by a previous attack of smallpox may be required to be vaccinated or may be placed under surveillance, or may be vaccinated and then placed under surveillance; if he refuses to be vaccinated, he may be isolated. The period of surveillance or isolation shall not be more than fourteen days, reckoned from the date of his departure from the infected area.

Explanation.-For the purposes of clause (iii) of sub-rule (1) of rule 5 and sub-rule (2) of rule 27 a valid certificate of vaccination against smallpox shall be considered as evidence of sufficient protection.

E. TYPHUS AND RELAPSING FEVER

28.

On the arrival of an aircraft having on board a person who is suffering from or is believed to be infected with typhus or relapsing fever--

(1)

the aircraft and all persons on board shall be medically examined by the Health Officer;

(2)

all infected persons shall be disembarked and isolated for such period as the Health Officer may consider necessary, and disinfected;

(3)

any suspect may be disinfected; and

(4)

the accommodation occupied by the infected person and by any suspect, together with the clothes they are wearing, the baggage and any other article which in the opinion of the Health Officer is likely to spread typhus or relapsing fever, may be disinfected and, if necessary, disinfected.

29.

A person on an international voyage, who has left a typhus infected area within the previous fourteen days or a relapsing fever infected area within previous eight days, may, if the Health Officer considers it necessary, be disinfected and put under surveillance for a period of not more than fourteen days in the case of typhus and not more than eight days in the case of relapsing fever, reckoned from the date of disinfecting. The clothes which such person is wearing, his baggage and any other article which in the opinion of the Health Officer is likely to spread typhus or relapsing fever may be disinfected and, if necessary, disinfected.

Special provisions relating to other infectious diseases

30.

(1)

An aircraft shall be regarded as infected with an infectious disease other than quarantinable diseases--

(i)

if it has a case of any infectious diseases on board, or

(ii)

if there has been a case of any such infectious disease on board and subsequent to the occurrence of that case all the measures prescribed in rule 31 of these rules have not been taken.

(2)

An aircraft shall be regarded as suspected of infection from an infectious disease other than quarantinable disease if it has on board any person who within the incubation period in respect of such infectious disease has been in contact with

a case of that disease or has been otherwise exposed to infection from that disease.

31.
On the arrival of an aircraft infected with an infectious disease other than quarantinable disease--

(1)
the aircraft and all persons on board shall be medically examined by the Health Officer;

(2)
any infected person--

(i)
who, not being a direct transit passenger, disembarks, or

(ii)
who being a direct transit passenger, leaves the airport otherwise than in the manner prescribed in rule 38, may be isolated for such period as the Health Officer may consider necessary;

(3)
persons who have been exposed to infection may, if they disembark, be placed under surveillance for a period not exceeding the incubation period of the infectious disease to which they have been exposed, such period being reckoned from the time of the last exposure to infection;

(4)
any parts of the aircraft and any goods or personal effects on board which, in the opinion of the Health Officer, are contaminated may be disinfected.

32.
On the arrival of an aircraft suspected of infection from an infectious disease--

(1)
the measures specified in sub-rule (1) of rule 31 shall be taken; and

(2)
the measures specified in sub-rules (3) and (4) of rule 31 not already taken may be taken at the discretion of the Health Officer.

33.
Except in case of an emergency constituting a grave danger to public health, an aircraft shall not, on account of an infectious disease other than quarantinable diseases, be prevented by the Health Officer of an airport from discharging or loading cargo or stores, or taking on fuel or water.

Part III ? AIRCRAFT DEPARTING

General

34.
The provisions of this Part shall apply to all aircraft leaving India on an international voyage.

35.
[
All persons proposing to embark upon an aircraft leaving any airport in the Andaman and Nicobar Islands or Lakshadweep Islands for any airport on the mainland or vice versa shall be medically examined by the Health Officer but they are not required to be in possession of valid certificates of vaccination against cholera and smallpox.]

36.
(1)
[The Health Officer shall, when brought to his notice,] prohibit the embarkation on any aircraft of--

(a)
any person showing symptoms of any quarantinable disease, and

(b)
any person whom the Health Officer considers likely to transmit infection because of his close contact with a person showing symptoms of a quarantinable disease:

Provided that nothing in this sub-rule shall apply when a person suffering from a quarantinable disease is to be transported in an aircraft specially adapted or allocated for the purpose:

Provided further that a person on an international voyage who on arrival is placed under surveillance may be allowed to continue his voyage in which case the Health Officer shall record this fact in the Aircraft General Declaration.

(2)

The Health Officer shall take all practicable measures to prevent the introduction on board an aircraft of possible agents of infection or vectors of a quarantinable disease.

37.

Subject to the special provisions relating to yellow fever prescribed in Part II of these rules, passengers and crew from a healthy aircraft who are in transit through India and who remain in the direct transit area of an airport or, if the airport is not yet provided with such an area, who submit to the measures for segregation prescribed by the Health Officer in order to prevent the spread of disease, shall not be subjected to any sanitary measure other than medical examination, if such persons are obliged to leave the airport at which they disembark solely in order to continue their voyage from another airport in the vicinity of the first airport, no such measure shall be applied to them if the transfer is made under the control of the Health Officer concerned.

38.

Where there is an epidemic of pulmonary plague in an airport every suspect shall, before departure on an international voyage, be placed in isolation for a period of six days reckoned from the date of the last exposure to infection.

39.

When typhus or relapsing fever exists in an airport, a person on an international voyage whom the Health Officer considers is liable to spread typhus or relapsing fever, shall be disinfected. The clothes which such person is wearing, his baggage, and any other article likely to spread typhus or relapsing fever shall be disinfected and if necessary, disinfected.

[39-A.

Every aircraft leaving a local area where transmission of malaria or other mosquito-borne disease is occurring, or where insecticide resistant mosquito vectors of disease are present, shall be disinfected under the control of the Health Officer as near as possible to the time of its departure but in sufficient time to avoid delaying such departure.]

Special rules relating to pilgrim aircraft

40.

No person shall be permitted by the Health Officer to embark on an aircraft with a view to proceeding by air to the Hedjaz unless such person produces valid certificates of vaccination against cholera and smallpox.

Part IV ? Special Provisions Relating To The Carriage Of Dead Bodies And Cremated Remains

41.

No person shall bring into India any dead-body or human remains of persons who may have died of yellow fever, plague, anthrax, glanders or such other diseases as may be notified by the Central Government for this purpose:

Provided that nothing in this rule shall apply to properly cremated ashes of dead bodies or human remains.

42.

The dead body human remains of a person who may have died of a disease other than those specified in rule 41 may be brought into India subject to the provisions of rules 43 to 47.

43.

The consignee as well as the air transport service shall give to the Health Officer of the airport of arrival advance intimation of at least 48 hours, of the importation of the dead body or human remains or ashes of cremated bodies:

Provided that nothing in this rule or in rules 44 to 47 shall apply to the dead body of a person who dies during flight before arrival of the aircraft in India. The Commander of the aircraft shall send, if the aircraft is equipped with wireless, a radio report to the Health Officer of the airport, where he proposes to land in India, regarding the occurrence and, if possible, cause of death. On landing of the aircraft no passenger or member of the crew shall disembark until appropriate sanitary measures have been taken by the Health Officer of the airport.

44.

Applications to bring dead bodies or human remains or ashes of cremated bodies to India shall be made to the Indian Diplomatic representatives in countries where such representatives are functioning or where there is no such representative, to the Health Officer of the airport at which the dead body is to be landed.

45.

(1)

If the dead body or human remains have been properly cremated, the cremated ashes shall be placed in an urn or casket having an outer packing of suitable material.

(2)

In the case of uncremated remains, the following procedure shall be adopted:--

(a)

A corpse which has not been buried should be closed in a shell of zinc or other equally suitable metal with all joints so soldered as to seal them hermetically and prevent the escape of noxious gases or fluids. The shell should be enclosed in a stoutly built teak or other hard wood coffin and the coffin should be enclosed in a zinc or tin-lined wooden packing case filled with sawdust impregnated with carbolic powder.

(b)

Where a coffin has been exhumed and proves on examination to be intact, sound and free from offensive odour, it should be enclosed in a hermetically sealed zinc or tin-lined wooden packing case filled with saw-dust impregnated with carbolic powder.

(c)

Where a coffin has been exhumed and is not intact, sound and free from odour, its contents should be dealt with in accordance with the requirements of clause (a) above.

46.

A certificate issued by a responsible Municipal or Governmental authority of the country from where the package containing the dead-body, or human remains or ashes of cremated bodies, as the case may be is imported and endorsed by the Indian Diplomatic Representatives, if any, in that country shall accompany the package. The certificate shall give the full name of the deceased, his age at the time of death and the place, date and cause of death and shall indicate that the package conforms to and has been sealed in accordance with the specifications prescribed in rule 45.

47.

The package containing the dead body or human remains or ashes of cremated bodies shall not be opened during its transit and shall be in a sound sealed condition at the time of arrival. It shall not be removed from the precincts of the airport until the Health Officer has permitted in writing its removal. After the Health Officer has accorded this permission, the consignee shall remove and dispose of the package in accordance with the general or special instructions which may be issued by the local authorities, Governmental and/or Municipal in this behalf.

48.

[

For the transmission of dead body or human remains and ashes of cremated bodies from India to any place outside India, the prior written permission of the competent authority of the country of destination as also of the District Magistrate or the Deputy Commissioner or the Chief Presidency Magistrate or the Coroner within whose jurisdiction the death took place, shall be obtained. The requirements laid down by the country of destination with regard to the import of dead bodies, human remains or ashes or cremated bodies into its territory shall be complied with by the consignor. In case no such conditions have been prescribed, the provisions of rule 45 shall be complied with the package and it shall bear an inscription to the effect that it contains infected material and should be handled with care.]

49.

Subject to the provision of rule 41, a package containing a dead body or human remains or ashes or cremated remains, which is in transit through India shall not be subject to any restrictions if it has been packed and sealed in the manner prescribed in rule 45 or in a manner which, in the opinion of the Health Officer, is considered to be equally satisfactory.

Part V ? MISCELLANEOUS

50.

The sanitary measures permitted by these rules are the maximum measures applicable to international traffic.

51.

Sanitary measure and health formalities shall be initiated forthwith, completed without delay, and applied without discrimination.

52.

Any sanitary measures other than medical examination, which has been applied to an aircraft at a previous airport shall not be repeated unless--

(a)

after the departure of the aircraft from the airport where the measures were applied, an incident of epidemiological significance calling for a further application of any such measure has occurred either in that airport or on board the

aircraft; or

(b)

the Health Officer has reason to believe that the individual measure so applied was not substantially effective.

53.

The Commander of an aircraft coming from a place outside India and proceeding to a place outside India may, if he so desires, notify the Health Officer of the airport in India where the aircraft first arrives, that he does not wish to submit to any of the provisions, except the special provisions relating to yellow fever, prescribed in Part II of these rules; and the aircraft shall thereupon be at liberty to continue its voyage, without such submission, provided that it shall not during its voyage land anywhere else in India except for the purpose of taking on fuel, water and stores in quarantine.

54.

The Health Officer shall when so requested issue free of charge to the Commander of an aircraft a certificate specifying the measures applied to the aircraft, the parts thereof treated, the methods employed and reasons why the measures have been applied. This information shall, on request, be entered in the Aircraft General Declaration.

55.

The Health Officer shall, when so requested, issue free of charge--

(a)

to any traveller a certificate specifying the date of his arrival or departure and the measures applied to him and his baggage;

(b)

to the consignor, the consignee, and the carrier, or their respective agents, a certificate specifying the measures applied to any goods.

56.

Where any person is required under these rules to be disembarked and isolated for any period, the Health Officer may remove or cause to be removed, that person to a hospital or other place approved by the Health Officer and detain him therein for that period. Persons who are under isolation for a disease other than yellow fever may, however, in exceptional circumstances at the discretion of the Health Officer, be allowed to continue their voyage before the expiry of the isolation period.

57.

(1)

Whenever surveillance is required or permitted by these rules, isolation shall not be substituted for surveillance unless the Health Officer of the airport where the suspect arrives or any other health authority to whom he is required to report during the period of surveillance considers the risk of transmission of the infection by the suspect to be exceptionally serious.

(2)

Apart from the provisions relating to quarantinable disease in Part II of these rules, the Health Officer may place under surveillance any suspect on an international voyage arriving from an infected area. Such surveillance may be continued until the end of the appropriate period of incubation specified in rule 2(15).

58.

A person under surveillance shall not be isolated and shall be permitted to move about freely. The Health Officer may require such a person to report to him, if necessary at specified intervals during the period of surveillance. The Health Officer may also subject such a person to medical investigation and make any enquiries which are necessary for ascertaining his state of health. Rectal swabbing shall not be done, but a person showing symptoms indicative of cholera may be required to submit to stool examination.

59.

When the person under surveillance departs for another place, he shall inform the Health Officer who shall immediately inform the health authority for the place to which the person is proceeding. On arrival the person shall report to the health authority who may apply the measures provided for in rule 58.

60.

Every person shall comply with all directions lawfully given and all conditions lawfully imposed by the Health Officer in pursuance of these rules and shall give that Officer all reasonable facilities for the discharge of any duty imposed on him by these rules.

61.

The Health Officer may, whenever he considers it desirable, refuse entry into the airport to any person, other than a person proceeding on an international voyage, or remove or cause to be removed from the premises of the airport any person who, in his opinion, is likely to spread any quarantinable or other infectious disease.

62.

(1)

Disinfection, disinfecting, deratting and other sanitary operations shall be so carried out as--

(a)

not to cause undue discomfort to any person or injury to his health;

(b)

not to produce any deleterious effect on the structure of an aircraft or on its operating equipment;

(c)

to avoid all risks of fire.

(2)

In carrying out such operations on goods, baggage and other articles, every precaution shall be taken to avoid any damage.

63.

(1)

Goods shall be submitted to sanitary measures provided for in these rules only when the Health Officer has reason to believe that they may have become contaminated by the infection of a quarantinable disease or may serve as a vehicle for the spread of any such disease.

(2)

Apart from the measures provided for in special provisions relating to cholera goods, other than live animals, in transit without transshipment shall not be subjected to any sanitary measures or detained at any airport.

64.

Except in the case of an infected person or suspect, baggage may be disinfected or disinfected only in the case of a person carrying infective material or insect vectors of a quarantinable disease.

65.

(1)

Mail, newspapers, books and other printed matter shall not be subject to any sanitary measure.

(2)

Postal parcels may be subjected to sanitary measures only if they contain--

(a)

any of the foods referred to in sub-rule (7) of rule 21 of these rules, which the Health Officer has reason to believe comes from a cholera infected area; or

(b)

linen, wearing apparel, or bedding which has been used or soiled and to which the provisions of Parts II and III of these rules are applicable.

66.

No sanitary document other than those provided for in these rules, shall be required by the Health Officer.

67.

(1)

No charge shall be made by the Health Officer of an airport for--

(a)

any medical examination provided for in these rules or any supplementary examination, bacteriological or otherwise which may be required to ascertain the state of health of the person examined;

(b)

any vaccination of a person on arrival and any certificate thereof.

(2)

Charges for applying the measures provided for in these rules, other than the measures referred to in sub-rule (1) of this rule, shall conform with the tariff for such charges as may be fixed from time to time by the Central Government. These

charges shall be rendered and they shall be levied without distinction as to the nationality domicile or residence of the person concerned or as to the nationality, flag registry or ownership of the aircraft. In particular there shall be no distinction made between national and foreign persons and aircraft.

(3)

The tariff, and any amendment thereto, shall be published in the Official Gazette at least ten days in advance of the levy thereunder.

(4)

If any person or member of crew refuses or fails to pay any charges due from him then, without prejudice to any proceedings that may be taken against him, such charges shall be recoverable from the owner of the aircraft on which such person or member of the crew arrives.

68.

The Commander of an aircraft shall during the stay of the aircraft in an airport, take such precautions as the Health Officer may specify in order to prevent rodents gaining access to the aircraft.

69.

A vaccination document issued by the Armed Forces to an active member of the Armed Forces shall be accepted in lieu of an international certificate in the form shown in Schedules III, IV or V if--

(a)

it embodies medical information substantially the same as that required by such form; and

(b)

it contains a statement in English or in French recording the nature and date of the vaccination and to the effect that it is issued in accordance with Article 99 of the International Sanitary Regulations.

Part VI ? Offences And Penalties

70.

No person shall throw or let fall from any aircraft any matter capable of producing an outbreak of a quarantinable or an infectious or any other epidemic disease.

71.

Whoever contravenes any provision of these rules, or disobeys, or fails to comply with, any order given in pursuance of these rules shall be punishable with imprisonment for a term not exceeding three months or with fine which may extend to one thousand rupees or with both.

[SCHEDULE I]

PERSONAL DECLARATION OF ORIGIN AND HEALTH

(See rule 6)

(For passengers on aircraft)

Port of arrival

1. Name in full.
2. Permanent (Home) Address.
3. Precise address to which immediately proceeding.
4. Please state where you spent the nine days prior to arrival.

Last day

Name of the countries including transit places

2 days ago

3 days ago

4 days ago

5 days ago

6 days ago

7 days ago

8 days ago

9 days ago

I declare that the information given above is correct to the best of my knowledge and belief.

Signature

Date

[SCHEDULE II]

[Substituted by S.O. 2710, dated 3-11-1961.]

DECLARATION OF HEALTH

(See rule 6)

Persons on board known to be suffering from illness other than air sickness or the effects of accidents, as well as those cases of illness disembarked during the flight

Any other condition on board which may lead to the spread of diseases

Details of each disinsecting or sanitary treatment (place, date, time, method) during the flight. If no disinsecting has been carried out during the flight give details of most recent disinsecting SGD, if required.

.....

Crew member concerned

III

INTERNATIONAL CERTIFICATE OF VACCINATION OR RE-VACCINATION AGAINST YELLOW FEVER

(See rules 2(20) and 14)

This is to certify thatDate of birth Sex..... whose signature followshas on the date indicated been vaccinated or revaccinated against yellow fever.

Date

Signature and professional status ofvaccinator

Origin and batch No. of vaccine

Official stamp of vaccinating centre

[Note.]

[Sub stituted by S.O. 2735, dated 28-8-1965.]

-This certificate is valid only if the vaccine used has been approved by the World Health Organisation and if the vaccinating centre has been designated by the health administration for the territory in which the centre is situated.

The validity of this certificate shall extend for a period of 10 years, begining ten days after the date of vaccination or, in the event of a revaccination within such period of 10 years from the date of that re-vaccination.

Any amendment of this certificate, or erasure, or failure to complete any part of it, may render it invalid.

IV

INTERNATIONAL CERTIFICATE OF VACCINATION OR RE-VACCINATION AGAINST CHOLERA

[See rules 2(20), 21 and 22]

This is to certify thatDate of birth Sex..... whose signature followshas on the date indicated been vaccinated or revaccinated against cholera.

Date

Signature and professional status of vaccinator

Approved stamp

- 1
- 1
- 2
- 2
- 3
- 3
- 4
- 4
- 5
- 5
- 6
- 6
- 7
- 7
- 8

8

The validity of this certificate shall extend for a period of six months, beginning six days after the first injection of the vaccine or in the event of a re-vaccination within such period of six months, on the date of that re-vaccination.

[***]

[Omitted by S.R.O. 2284, dated 5-7-1957.]

The approved stamp mentioned above must be in a form prescribed by the health administration of the territory in which the vaccination is performed.

Any amendment of this certificate, or erasure, or failure to complete any part of it, may render it invalid.

[SCHEDULE V]

[Substituted by S.O. 2735, dated 28-8-1965 (w.e.f. 1-1-1967).]

INTERNATIONAL CERTIFICATE OF VACCINATION OR RE-VACCINATION AGAINST SMALLPOX

[See rules 2(20) and 27]

This is to certify thatDate of birth.....Sex..... whose signature follows
.....has on the date indicated been vaccinated or re-vaccinated against smallpox with a freeze
dried or liquid vaccine certified to fulfil the recommended requirements of the World Health Organisation.

Date

Show by 'X' whether:

Signature and professional status of vaccinator

Origin and batch No. of vaccine

Approved stamp

(a)1

Primary vaccination performed

A1

b1

(b)1

Read as successful unsuccessful

2

Re-vaccination

2

3

3

Re-vaccination

The validity of this certificate shall extend for a period of three years, beginning eight days after the date of a successful primary vaccination or, in the event of a revaccination, on the date of that re-vaccination.

The approved stamp mentioned above must be in a form prescribed by the health administration of the territory in which the vaccination is performed.

Any amendment of this certificate, or erasure, or failure to complete any part of it, may render it invalid.

Note.-This revised Schedule V will come into force on 1st January,1967.

VI

PROCEDURE FOR DISINSECTISATION OF AIRCRAFT

[See rule 9(2)]

The interior of the aircraft (inclusive of all places likely to harbour mosquitoes, such as cockpits, freight compartments, cabins) shall be sprayed with a pyrethrums DDT aerosol containing not less than 0.4 per cent. pyrethrums and 3 per cent. DDT, [* * *]

[Omitted by S.O. 3126, dated 20-12-1960.]

at a rate of not less than [8 to 10 seconds]

[Substituted by S.R.O. 2084, dated 5-7-1957.]

per 1,000 cubic feet of free air space; the stopcock in the case of an aerosol dispense other than the Westing house type being kept open not less than half a turn during the operation and in the Westing house type the cap being removed completely. All openings into the aircraft shall be kept tightly closed during the spraying and for a period of not less than [five minutes]

[Substituted by S.R.O. 2084, dated 5-7-1957.]

thereafter.

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Translation